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r/neoliberal • 5y ago

FireDistinguishers



Congress 409: Seminar - Lobbying 1

Effortpost

Introduction

Didn't expect to write this post immediately after the office structure post but man going through old conversations about this topic made me realize it has to go on record ASAP.

Lobbying, one of the few words in our political lexicon that's dirtier than "neoliberal," so it's no wonder why it's assumed everyone here is super in favor of big money fat cats throwing money at political campaigns to make their wishes a legal reality. At least, that was the sentiment I picked up reading through [this thread](#) and some of the comments from users who aren't a fan of this sub or what the people here tend to believe in. If you read my comment on there then I suspect you'll be bored reading this post because it's more a replay than a remix, but I have some new material in here so hey you might get something new out of it.

As always, I'm an LC in the Senate, and this is a series of effortposts about how Congress works on the inside, and here are the links to all the old posts:

[Part 5](#) [Part 4](#) [Part 3](#) [Part 2](#) [Part 1](#) [Part 0](#)

What is "Lobbying"

The idea of lobbying being this sleazy money-under-the-table thing isn't an uncommon association in Americans' thoughts. You might have this image in your mind about lobbying being this thing you could find in the Tammany Hall style political machines on *the Simpsons*, or in *Mr. Smith goes to Washington*, or just a bunch of *Mad Men*-style four martini lunches around the Capitol building. Maybe you watched *Meet the Donors* or *The Swamp* on HBO and now you have this idea in your recent memory.

Are these accurate portraits of reality? Well, until recently, yes. Lobbying is regulated in the United States by the [Lobbying Disclosure Act of 1995](#), and in the second section of the bill it spells out that

The Congress finds that- (1) responsible representative Government requires public awareness of the efforts of paid lobbyists to influence the public decisionmaking process in both the legislative and executive branches of the Federal Government; (2) existing lobbying disclosure statutes have been ineffective because of unclear statutory language, weak administrative and enforcement provisions, and an absence of clear guidance as to who is required to register and what they are required to disclose; and (3) the effective public disclosure of the identity and extent of the efforts of paid lobbyists to influence Federal officials in the conduct of Government actions will increase public confidence in the integrity of Government.

Now, I work in the Government, where it's near impossible to admit our shortcomings because of some weird image about continuity. For God's sake the Supreme Court thinks its the same organization that ruled on Dred Scott, reading these three bullet points are the closest thing to an admission that before the LDA Congress left the practice of lobbying insufficiently regulated. Now back to the question at hand, those examples I gave

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An individual action is considered lobbying to the Federal Government if it takes the form of a "Lobbying Activity," a classification of actions that includes both "Lobbying Contacts" and preparation for those Lobbying Contacts.

So what's a "Lobbying Contact?"

A "Lobbying Contact" is

"any oral or written communication (including an electronic communication) to a covered executive branch official or a covered legislative branch official that is made on behalf of a client with regard to- (i) the formulation, modification, or adoption of Federal legislation (including legislative proposals); (ii) the formulation, modification, or adoption of a Federal rule, regulation, Executive order, or any other program, policy, or position of the United States Government;"

Hey that's another term that needs definitions, what's a "Covered Official?"

Covered Officials are defined in here as

"(3) COVERED EXECUTIVE BRANCH OFFICIAL.-The term "covered executive branch official" means- (A) the President; (B) the Vice President; (C) any officer or employee, or any other individual functioning in the capacity of such an officer or employee, in the Executive Office of the President; (D) any officer or employee serving in a position in level I, II, III, IV, or V of the Executive Schedule, as designated by statute or Executive order; (E) any member of the uniformed services whose pay grade is at or above 0-7 under section 201 of title 37, United States Code; and (F) any officer or employee serving in a position of a confidential, policy-determining, policy-making, or policy advocating character described in section 7511(b)(2) of title 5, United States Code."

and as

"(4) COVERED LEGISLATIVE BRANCH OFFICIAL.-The term "covered legislative branch official" means- (A) a Member of Congress; (B) an elected officer of either House of Congress; (C) any employee of, or any other individual functioning in the capacity of an employee of- (i) a Member of Congress; (ii) a committee of either House of Congress; (iii) the leadership staff of the House of Representatives or the leadership staff of the Senate; (iv) a joint committee of Congress; and (v) a working group or caucus organized to provide legislative services or other assistance to Members of Congress; and (D) any other legislative branch employee serving in a position described under section 109 (13) of the Ethics in Government Act of 1978 (5 U.S.C. App.)."

This is all in Section 3 of the act, and if you want to reference the Code directly they're in 2 U.S. Code § 1602. You should read the whole LDA I linked above, it's very short and it'll give you the full picture.

Now with that in mind let's test some things out. One guy in the thread that started this all said "Writing a letter to your congressperson is lobbying." Is that true according to the law?

It depends on what's in the letter. Do you want your Congressperson to do something regarding "the formulation, modification, or adoption of Federal legislation (including legislative proposals)?" Maybe you said

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proposal.

If it's a thank you letter or a constituent service letter? Nope. Not lobbying. Wouldn't fit the definition of a Lobbying Contact, so it and its prep wouldn't be Lobbying Activity.

I did this in the original comment but I'll mention that you can meet with your Rep.'s or Senators' staff. They can't turn you away. You don't even have to come to DC anymore to do it, you can make a zoom meeting and ask them to do something you want. I talk about these meetings in the DT from time to time, they're the single most effective thing you can do to put an issue and a solution to that issue on our radars. Everybody says call or write a letter, no man, schedule a meeting with an LC, maybe you'll get an LA. It's great.

So where do corporations come into play? If anybody can lobby, why isn't everyone a lobbyist?

Registration

When most people think "Lobbyist" they're thinking about a "**Registered Lobbyist.**" Section 4 of the LDA lays it out, 2 U.S. Code § 1601 if you want to see it in the Code. It lays out that if a person fits definitions mentioned previously but engages in Lobbying *Activities* (meaning that includes prep for those Lobbying Contacts) on behalf of a client for more than 20% of their job for that client, they have to register as a lobbyist with the House and the Senate. Basically this registration lets people know that with respect to a certain issue area this person is being paid to represent the views of someone other than themselves.

These disclosures are public information by the way. One guy in that original thread cited open secrets, which is a great website but in this case it's actually pretty easy to see the primary source filings. These registrations are, by definition, not a secret at all, they're public records. [Here's the Senate's Lobbying Disclosure lookup page.](#) It's a lot of fun to look through this thing. Type somewhere you know into the Client section here, it could be a company like Nike which is where most people's minds go but try something else. I always say look up your University or Alma Mater. You could also look up an NGO you like, I'm personally a fan of the Wounded Warrior Project and the Sierra Club.

When you see these reports on the main page you'll see a few things: Registrant (that's the group that has registered to hire and retain Registered Lobbyists, as defined in the LDA); Client (that's who the Registrant and their Registered Lobbyists are working for); Report Type (usually I just look at the Quarterly ones because I don't understand the rest); Amount Reported (the sum of how much the Client spent on the Registered Lobbyists' salaries and the Registrant's fees and literally everything else they had to spend on during that period of the report); and obvious stuff like the Filing year and date it was posted to the website (which is usually a few hours after they submit the form).

In those first three categories it's not uncommon to see overlap sometimes. Maybe a company is listed as both the Registrant and the Client, meaning they don't hire a lobbying firm to do their work, they hire individual lobbyists themselves and submit an organizational Registration in house.

Click on a report and you'll see the contact name of whoever filed the file you're looking at, you'll see the name of every Registered Lobbyist they had working during that period, and you'll see every issue they talked about and to whom they talked to about those issues. I'll use [this filing as an example](#) from my Alma Mater the University of Hawaii, who in Q4 2020 hired a consulting firm Kaimana Hila, who in turn hired a Registered Lobbyist who works for a group called Strategies 360. Didn't know that before I clicked on the form by the way, found that out just by reading this thing. Looks like the guy they hired was Andrew Winer who lobbied in

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that kind of stuff when I was a student. They paid the firm \$10k during the quarter, so \$40k a year. That's less than the guy's salary so I doubt he's working on that stuff full time but hey no need to doubt we can always look him up using the Disclosure search (put his name in the "Lobbyist" section).

Meetings

Ok, what does it look like meeting with these guys? It's exactly the same as meeting with a constituent (which I recommend you do) but they're more prepared because they do this for a living.

Regular constituent meetings usually go like:

Constituent: Hey, I'm this guy, I work here, I live in your State, and something I really care about is this thing and I really think you should fix that. Me: You know, yeah, we can definitely look into doing something about that.

Little does the guy know that the issue he brought up was because of State laws and I have no fucking influence over those.

Good constituent meetings go like:

Constituent: Hey I'm this guy, I know you guys are swamped with hearing about this thing that there's going to be a vote about next week but I'm a constituent living here in the State, and this is what that bill means to me and everybody like me Me: Shit man, that's an angle I haven't heard before, I'm going to write a few notes for our LA on this issue and I can talk about it with him later today to see what our options are.

At which point I'll scribble something on a post it, get called to put out a fire because it's Congress and there's always some bullshit going on, and the next day when I get to work I'll end up giving a run down to my direct boss (the LA on the issue).

Lobbyists usually take it a step further. First of all, if they aren't a constituent of ours, sometimes they'll find a constituent of ours. That's really popular among unions and professional societies, they have these "Hill" days where they take members around to their Rep. and Senators' offices, the dentists are really fun because they wear their lab coats and they always have gum. That's an aside.

Lobbyists are also really keen on giving us options about how we can make their goals and our office's goals align. They'll say "you can join this dear colleague we're circulating through X's office" and "we know Y's office is going to be proposing this you should cosponsor it." They make my life as a Staffer easier, and although I can't unilaterally make decisions on my boss' behalf, I have my boss' ear. Any amount of work I can take off my plate is a good thing, that goes for every Staffer in Congress, these guys know that, and they use that. It might even be the case that they'll full on write the language they want and present it to offices like "hey, we know it'll be a pain to make this happen, but we want this thing that your member wants and oops look at that we already have the amendment text to make it happen right here." That's the closest thing to a bribe I've ever gotten: having any amount of my workload taken from my shoulders and put on the shoulders of somebody else.

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Fuck you I'm really happy with this one

!ping BESTOF

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<https://imgur.com/a/lvdeGlg>

**A_contact_lenzz** • 5y ago

This is the first of your posts I read all the way through, and you deserve it.

**FireDistinguishers OP** • 5y ago

Thanks man

**groupbot** • 5y ago • Edited 5y ago

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**Extreme_Rocks** • 5y ago

Shit, when are you going to run for Senate

**FireDistinguishers OP** • 5y ago

I doubt the voters would take me

**_Un_Known__** • 5y ago

hot damn, you really ARE the senate huh.

**FireDistinguishers OP** • 5y ago

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In your staffing post, you said that the house staff can be no larger than 8 people and that the senate just gets a budget to play with. I know that there can probably be a big range of what things look like, but can you describe what a "typical" Senator's office looks like? How many people at each level is more or less the norm?

Then what kind of extra staff does a committee chair or leadership have on top of this?

**FireDistinguishers** OP • 5y ago

Honestly the variance is too high to make generalizations. There are at least two people doing the job of every person on a legislative team except at the LD level, but honestly I've heard of offices with 1 LA and 15 LCs and some with 3 LCs and 9 LAs. It's entirely up to the Senator him or herself to figure out what their office looks like

**Th3_Gruff** • 5y ago

Awesome dude 😊👍

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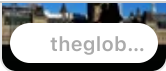
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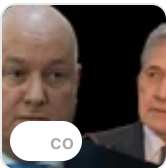
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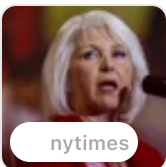
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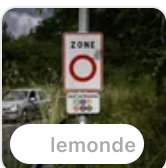
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MY PRESIDENT 🇺🇸🇺🇸🇺🇸🇺🇸



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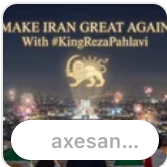
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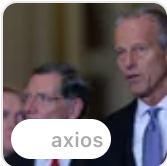
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